



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2023-28479 / PODS Case No. C-031659 regarding Police Officer Anes Ibrahimagic

Date: November 7, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved an allegation that Police Officer Ibrahimagic strip-searched an individual without sufficient legal authority. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, Police Officer Ibrahimagic will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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March 6, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Anes Ibrahimagic (Tax Reg #963076, DADS #2023-28479)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with a penalty of Training was agreed upon and signed by all parties on January 17, 2025.

On January 25, 2022, a number of officers, including Officer Ibrahimagic, responded to a 911 call at 1455 Nelson Avenue in the Bronx. A civilian had called stating that an individual was trying to break into her apartment. When the officers arrived at the location, they see a civilian named [REDACTED] leaving the building. Mr. [REDACTED] matched the description of the suspect given by the caller. Mr. [REDACTED] is stopped by the officers to carry out an investigation. He is confrontational, uncooperative with the officers, and refuses to keep his hands out of his pockets. As a result, the officers had to struggle with him to get the situation under control.

Body-worn camera shows that, while Mr. [REDACTED] is handcuffed, Officer Ibrahimagic pulled the elastic strap of Mr. [REDACTED]'s underwear away from Mr. [REDACTED]'s body. PG 208-05 defines as a strip search any search where an individual's undergarments are lifted up or pulled to expose an individual's private areas. Such a search is only permissible when there is reasonable suspicion that the individual is concealing evidence, contraband or a weapon, and when authorized by a supervisor. Officer Ibrahimagic did not possess the reasonable suspicion required for this strip search to take place.

For the charge of an unwarranted strip search, the disciplinary matrix lists a mitigated penalty of the forfeiture of twenty (20) vacation days, a presumptive penalty of twenty (20) suspension days and dismissal probation, and an aggravated penalty Termination.

The negotiated settlement deviates from the penalties listed in the NYPD disciplinary guidelines as to an unwarranted strip search for the following reasons:

In Officer Ibrahimagic's five years of service, he has no prior discipline record and no prior CCRB cases. In addition, the strip search in this case was of extremely short duration. It is for these reasons that the CCRB recommends a dismissal of the specification with the recommendation that Officer Ibrahimagic receive Training.

Respectfully submitted,

Brian Arthur

Brian Arthur, Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board